

24STCV31877 24STCV31877

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-14

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Case Number: 24STCV31877 Hearing Date: September 14, 2026 Dept: 512

HEARING DATE: Mon., September 14, 2026 JUDGE

/DEPT: Mkrtchyan/512

CASE NAME: Abdurrahim

v. Huntaway Midstream West, COMP.

FILED: 12-04-24

LLC

CASE NUMBER: 24STCV31877

NOTICE:

OK

PROCEEDINGS: AMENDED MOTION TO BE RELIEVED AS
COUNSEL

MOVING PARTY: Counsel

Travis M. Gemoet of Jeffer Mangels & Mitchell LLP

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Travis M. Gemoet of
Jeffer Mangels & Mitchell LLP's unopposed Amended Motion to be Relieved as Counsel for
Defendant Huntaway Midstream West, LLC is GRANTED. However, the corrected
MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as
Counsel-Civil" must be resubmitted with the Court within the next 3 days of
this ruling providing the name of the firm and counsel's name on the order, as
well as the additional upcoming date of Order to Show Cause Re: Status of
Defendant Huntaway Midstream West, LLC's representation scheduled for November
12, 2026.

The Court's Ruling and Attorney's
relief as Counsel of record for client is not effective until Proof of Service
of the Order signed by the Court upon the client is served and filed in this
action. Until then, counsel continues to be counsel of record. (Cal. Rules of
Court 3.1362(e).)

On its own motion, the Court sets an
Order to Show Cause Re Status of Defendant Huntaway Midstream West, LLC's
Representation for November 12, 2026, at 8:30 a.m. in Dept. 512 of the Stanley
Mosk Courthouse, for Defendant corporation to advise the Court as to the status
of its representation by counsel who is a member of the California State Bar.

As an entity, Defendant may not
represent itself in this litigation, and may only appear through counsel who is
a member of the California State Bar. The failure of Defendant to obtain
counsel before the next hearing date on November 12, 2026, will result in the
striking of Defendant Huntaway Midstream West, LLC's Answer in these
proceedings.

Defendant's Counsel is ordered to give
notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC,
rule 3.1300) OK

☒ Correct
Address (CCP §§ 1013, 1013a) OK

[X] 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of September 9, 2026 [] Late [X] None

REPLY: None

filed as of September 9, 2026 []

Late [X] None

ANALYSIS:

I.

Background

On December 4, 2024, Plaintiff

Kameelah Abdurrahim, as an aggrieved employee and on behalf of all other aggrieved employees, filed a Complaint Under the Labor Code Private Attorneys' General Act of 2004 against Defendant Huntaway Midstream West, LLC ("Defendant") and Does 1-100.

On May 5, 2025, Defendant filed an Answer.

On March 24, 2026, Plaintiff filed a Substitution of Attorney form.

On June 11, 2026,

Defendant's counsel Travis M. Gemoets of Jeffer Mangels & Mitchell LLP ("Counsel") filed and served the instant Motion to be Relieved as Counsel for Defendant and accompanying declaration (the "Motion").

On July 13, 2026, Counsel filed a Proposed Order in support of the Motion.

On August 3, 2026, the Court continued the hearing on the Motion to allow Counsel an opportunity to address the various deficiencies found by the Court. (8/3/26 Order.)

On August 19,
2026, Defendant filed Notice of Continuance.

That same day,
Counsel filed and served an Amended Motion, supporting declaration, and
proposed order.

No Opposition
has been filed.

II.
Legal
Standard

Code
of Civil Procedure section 284 states that “the attorney in an action...may be
changed at any time before or after judgment or final determination, as
follows: (1) Upon the consent of both client and attorney...; (2) Upon the order
of the court, upon the application of either client or attorney, after notice
from one to the other.” (Code Civ. Proc., § 284; Cal. Rules of Court, rule
3.1362.) “The determination whether to
grant or deny a motion to withdraw as counsel lies within the sound discretion
of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66
Cal.App.4th 1128, 1133); see Lempert v. Superior Court (2003) 112
Cal.App.4th 1161, 1173.)

An application
to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice
of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal.
Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,
California Rules of Court, rule 3.1362 subsection (d) requires that the notice
of motion and motion, declaration, and proposed order be served on the client
and all other parties who have appeared in the case by personal service,
electronic service, or mail. If the notice is served by electronic service, it
must be accompanied by a declaration stating that the electronic service
address is the client's current electronic service address. (Cal. Rules of
Court, rule 3.1362, subd. (d)(2).) As used in this rule, “current” means:

"[T]he address
was confirmed within 30 days before the filing of the motion to be relieved.

Merely
demonstrating that the notice was sent to the client's last known address and
was not returned or no electronic delivery failure message was received is not,
by itself, sufficient to demonstrate that the address is current."

(Cal. Rules of
Court, rule 3.1362, subd. (d).)

III.
Discussion

On June 11 and July
13, 2026, Counsel moved the
Court to be relieved as attorney of record for Defendant. (MC-051.) Counsel
filed MC-051, MC-052, and MC-053 Forms. (Cal. Rules of Court, rule
3.1362, subds. (a), (c), (e).)

On August 19,
2026, Counsel filed amended MC-051, MC-052, and MC-053 Forms following the
Court's 8/3/26 Order. The amended MC-052 Form states, in pertinent part, the
following:

Counsel seeks to
be relieved due to Client's failure to pay legal fees for services rendered by
Jeffer Mangels & Mitchell LLP ('JMM'). On May 27, 2026 JMM Partner Michael
Gold sent a formal written notice to Mr. Santi that JMM's attorney client
relationship with respect to LASC Case Nos. 24STCV24435 and 23STCV31910 would
terminate upon the earlier of the company's substituting new counsel in place
of JMM or the entry and service upon the company of a court order granting
JMM's motions to be relieved as counsel for the company in the aforesaid
litigation cases. On May 29, 2026, I sent a formal written notice to Mr. Santi
that JMM's attorney-client relationship with respect to the instant case, LASC
Case No. 24STCV31877, would also terminate upon the earlier of the company's
substituting new counsel in place of JMM or the entry and service upon the
company of a court order granting JMM's motions to be relieved as counsel for
the company in the instant case. (See Exhibit A.) On August 18, 2026, I sent a
second written notice to Mr. Santi reiterating this. (See Exhibit B.) Counsel

cannot competently and diligently represent Client when Client refuses to pay for legal services rendered. Client's conduct breaches its engagement agreement with JMM.

(Amended MC-052, ¶ 2.)

The Court is satisfied with Counsel's reasons for seeking to be relieved and is now satisfied that Counsel provided adequate warning to Defendant pursuant to California Rules of Professional Conduct, rule 1.16, subdivision (b)(5). (See Cal. Rules of Professional Conduct, rule 1.16, subd. (b)(5).) The Court also finds the Amended Motion satisfactorily complies with California Rules of Court, rule 3.1362.

Counsel Travis M. Gemoet of Jeffer

Mangels & Mitchell LLP's unopposed Amended Motion to be Relieved as Counsel for Defendant Huntaway Midstream West, LLC is GRANTED. However, the corrected MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 3 days of this ruling providing the name of the firm and counsel's name on the order, as well as the additional upcoming date of Order to Show Cause Re: Status of Defendant Huntaway Midstream West, LLC's representation scheduled for November 12, 2026.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

On its own motion, the Court sets an Order to Show Cause Re Status of Defendant Huntaway Midstream West, LLC's Representation for November 12, 2026, at 8:30 a.m. in Dept. 512 of the Stanley Mosk Courthouse, for Defendant corporation to advise the Court as to the status of its representation by counsel who is a member of the California State Bar.

As an entity, Defendant may not represent itself in this litigation, and may only appear through counsel who is a member of the California State Bar. The failure of Defendant to obtain counsel before the next hearing date on November 12, 2026, will result in the striking of Defendant Huntaway Midstream West, LLC's Answer in these proceedings.

IV.

Conclusion & Order

Accordingly, Counsel Travis M. Gemoet of Jeffer Mangels & Mitchell LLP's unopposed Amended Motion to be Relieved as Counsel for Defendant Huntaway Midstream West, LLC is GRANTED. However, the corrected MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 3 days of this ruling.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

Defendant's Counsel is ordered to give notice.